

फार्म नं. 1

प्रथम सूचना प्रतिवेदन (धारा 173 बी एन एस एस के अन्तर्गत)

वि.पु.स्था.सी-

II

FIRST INFORMATION REPORT (Under Sec.173 BNSS)

S.P.E.C.-II

बुक नं.

क्रम सं.

Book No. 2024

Serial No. 32

1. जिला: थाना: वर्ष: प्र. सू. प्र. क्र. दिनांक:
District PS: Year FIR No. Date
Chandigarh CBI, ACB, CHG 2024 RC0052024A0032 26.11.2024
2. (1) विधान: धाराएं:
Act **PC Act, 1988** Sections: **7**
(as amended in 2018)
- (2) विधान: धाराएं:
Act - Sections: -
- (3) विधान: धाराएं:
Act - Sections: -
- (4) अन्य विधान एवं धाराएं:
Others Acts & Sections -
3. (क) प्रतीत अपराध:
Suspected Offence : **Demand of undue advantage.**
- (ख) दिन दिनांक समय
(b) Day Date Time
From 24.11.2024 onwards.
- (ग) थाने पर सूचना प्राप्त होने का दिनांक
(c) Information received at PS Date
CBI, ACB, Chandigarh 26.11.2024
- कायमी अपराध : दिनांक समय
Entry No. Date Time
07 26.11.2024 06.00 AM
4. सूचना का प्रकार : लिखित/मौखिक
Type of information Written/Oral
Complaint Written
5. घटना का स्थान
Place of occurrence **Bhiwani, Haryana**
(क) थाने से दिशा व दूरी :
(a) Direction & Distance from PS : -

बीट सं./Beat No.

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- (ख) पता:
(b) Addresses: **Bhiwani, Haryana.**

- (ग) घटनास्थल अन्य थाना क्षेत्राधिकार में है तो थाना-
(c) In case, outside the limit of this Police Station, then

पुलिस थाना का नाम
Name of PS - जिला
District-

6. अभियोगी/सूचनाकर्ता
Complainant / Informant. Complainant

- (क) नाम
(a) Name **Dr. Gaurav Bewal**
- (ख) पिता/पति का नाम
(b) Father's/Husband's Name -
- (ग) जन्म तिथि
(c) Date of Birth - (घ) राष्ट्रीयता
(d) Nationality **Indian**
- (ड.) पासपोर्ट नं.....जारी दिनांक.....जारी होने का स्थान
(e) Passport No. - Date of Issue - Place of issue-
- (च) व्यवसाय
(f) Profession **Director, SMSG Hospital, Bhiwani, Haryana.**
- (छ) पता-
(g) Address – **Director, SMSG Hospital, Maharaja Agarsen Chowk, Bhiwani, Haryana.**
7. ज्ञात/संदेही/अज्ञात/आरोपी का पूर्ण विवरण
Details of known/suspected/unknown accused with full particulars
(यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
(Attached separate sheet, if necessary)

1. **Sh. Kuldeep Singh, In-charge, Polyclinic, ECHS, Bhiwani, Haryana.**

8. अभियोगी/सूचनाकर्ता द्वारा सूचना दिए जाने में विलंब का कारण:
Reasons for delay in reporting by the complainant/informant.
9. अपहृत/सम्बद्ध सम्पत्ति का पूर्ण विवरण (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
Particulars of properties Stolen (Attach separate sheet, if necessary)
10. अपहृत/सम्बद्ध सम्पत्ति का मूल्य:
Total value of property stolen
11. मर्ग/अकाल मृत्यु सूचना क्रमांक:
Inquest Report/U.D. Case No., if any,
12. प्रथम सूचना का विवरण:- (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
First information contents (Attach separate sheet, if required)

Complaint dated 24.11.2024 of Sh. Gaurav Bewal, Director, SMSG Hospital, Maharaja Agarsen Chowk, Bhiwani, Haryana and Verification report dated 25.11.2024 of Shri Arun Ahlawat, Inspector, CBI, ACB, Chandigarh are attached as per Annexure "A" & "B" respectively. The allegations mentioned in the complaint were verified by Shri Arun Ahlawat, Inspector, CBI, ACB, Chandigarh and found to be true.

Hence, a Regular Case is registered and entrusted to Inspector Narender Kalwania, CBI, ACB, Chandigarh.

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13. कार्यवाही जो की गई: चूँकि उपरोक्त विवरण क्रमांक 2 में उल्लिखित धारा(ओं) के अंतर्गत घटने वाले अपराध को उद्घाटित करता है
Action taken: Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2.

- (1) मामला पंजीकृत किया गया एवं जांच प्रारंभ हुआ अथवा
Registered the case and took up the investigation or
Took up for investigation

A regular case is registered.

- (2) निर्देशित (जांच अधिकारी का नाम) रैंक नं. जांच हेतु लिया गया
Directed (Name of IO) Rank No Took up for
Investigation

**Sh. Narender Kalwania, Inspector,
CBI, ACB, Chandigarh**

Yes

- (3) कारण से जांच के नामंजूर अथवा
Refused investigation due to or

- (4) पुलिस थाना को स्थानांतरित किया गया जिला क्षेत्राधिकार के आधार पर
Transferred to PS District on point of jurisdiction

अभियोगी/सूचनाकर्ता को प्र. सू. पत्र पढ़ाकर/पढ़कर सुनाया गया, जिन्होंने सही-सही अभिलिखित होना स्वीकार किया।
इसकी एक प्रति अभियोगी/सूचनाकर्ता को निःशुल्क प्रदान की गई।

FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

पढ़ कर सुनाया व सही स्वीकृत होना पाया।
R.O.A.C.

14. अभियोगी/सूचनाकर्ता के हस्ताक्षर
Signature/Thumb Impression
of the complainant/informant

थाना अधिकारी के हस्ताक्षर
Signature of Officer in-charge
Police Station

नाम / Name

(Karan Singh Rana)

(पद) / Rank

**Addl. Superintendent of Police,
CBI, DSPE, ACB, Chandigarh.**

15. न्यायालय को भेजने का दिनांक एवं समय
Date and time of despatch to the Court

(Karan Singh Rana)

**Addl. Superintendent of Police,
CBI, DSPE, ACB, Chandigarh.**

(प्रभारी अधिकारी के हस्ताक्षर तारीख सहित)

Signature of recording Officer with date

प्रथम सूचना रिपोर्ट का आइटम 7 लगाएं

Attachment to item 7 of First Information Report -- **NIL**

संदिग्ध व्यक्ति की शारीरिक विशेषताएं, विरूपता तथा अन्य विवरण:-

Physical features, deformities and other details of the suspect/accused: (if known/seen)

क्र.सं. S.N o.	*लिंग (Sex)	*जन्म की तारीख / वर्ष Date/Year of Birth	*शारीरिक क गठन (Built)	*ऊंचाई से. मी. में (Height) (in cms)	*वर्ण (Complexion)	*पहचान चिन्ह (Identification Mark/s)
1	2	3	4	5	6	7
-	-	-	-	-	-	-

विरूपता/विलक्षणता (Deformities/ peculiarities)	दांत (Teeth)	बाल (Hair)	आँख (Eye)	आदतें (Habits)	पहनावा (Dress Habit/s)
8	9	10	11	12	13
-	-	-	-	-	-

भाषा / बोली (Language / Dialect)	स्थान / Place of				
	जले का निशान (Burn Mark)	श्वेत कुष्ठ (Leucoderma)	तिल (Mole)	जखम चिन्ह (Scar)	गोदना (Tattoo)
14	15	16	17	18	19
-	-	-	-	-	-

अभियोगी / सूचनाकर्ता, द्वारा संदिग्ध / अभियुक्त के बारे में एक या अधिक विवरण दिए जाने पर ही इसमें प्रविष्टि की जाए।

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.

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24/Nov/19

To

The

Dy.

CBI, AIB

Sector - 3, Chandigarh

Sub- complaint against Sh. Kuldeep Singh, in-charge polyclinic
ECLS Bhiwani for demanding Bribe

R/s. Mr. Gaurav Bernal Director of Smt. Hospital Agarsain
Chack Bhiwani, our hospital is ECLS depaneled. Almost one month
back, I along with my friend Sh. Underjeet who runs pharmacy
shop in my hospital, had gone to hisar and had meet
Sh. Kuldeep Singh in-charge polyclinic ECLS Bhiwani who reside
in Hisar while discussing the matter of referring the patient
to our hospital and for clearing emergency intimation
of patient. Sh. Kuldeep Singh demanding Bribe of Rs-5000
per patient in the presence of Sh. Underjeet he further
told that if the bribe is not paid he will get our hospital
de-empneled during that conversation Sh. Kuldeep Singh
told us that I need not come to deliver the bribe amount
myself and instead asked me to deliver the amount
through my friend Underjeet. He further informed that
the Bribe amount is to be paid/delivered to him at Bhiwani
Railway station to maintain secrecy from other staff of
ECLS Bhiwani.

As I didn't want to pay bribe I have been delaying all
demand of bribe but he has been pressurizing through his
call to pay the Bribe amount of Rs-15500 for 31 patient
referred by ECLS polyclinic for last several days.

Sir I do not want to give bribe of Rs-15500
to Sh. Kuldeep Singh in-charge polyclinic, ECLS Bhiwani
and request you to take appropriate legal action

against Sh. Kuldeep Singh for demanding Bribe

Yours Faithfully

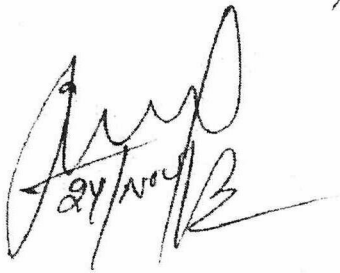
Dr Gaurav Bhatnagar

Director

Smsg Hospital

Bhimgarh (Hwy)

mob - 7404102074


24/Nov/23

CONFIDENTIAL

VERIFICATION REPORT DATED 25.11.2024

On 24.11.2024, I received the directions of supervisory officer to visit Bhiwani and meet Dr. Gaurav Bewal, Director of SMSG Hospital, Maharaja Agarsen Chowk, Bhiwani to receive the complaint of demand of bribe by a public servant and to verify the same. I arranged one Sony Digital Voice Recorder from CBI Office along with 03 new memory cards of 32 GB capacity each of make SanDisk for the purpose of verification. I along with Const. Vivek Bhangalia left for Bhiwani in official vehicle and reached Bhiwani at around 01.45 PM. There, I met Dr. Gaurav Bewal, Director of SMSG Hospital, Maharaja Agarsen Chowk, Bhiwani. Dr. Gaurav Bewal handed over to me a complaint dated 24.11.2024 written in English addressed to "The DIG, CBI, ACB, Chandigarh". I perused the said complaint and discussed the contents of the complaint with the complainant Dr. Gaurav Bewal. I informed & discussed the facts with Supervisory Officer and he directed me to conduct the secret verification with regard to the complaint.

In his complaint dated 24.11.2024, Dr. Gaurav Bewal has informed that he is Director of SMSG Hospital, Maharaja Agarsen Chowk, Bhiwani and his hospital is ECHS empaneled. Almost one month back, Dr. Gaurav Bewal alongwith his friend Sh. Inderjeet, who runs Pharmacy Shop in his hospital, had gone to Hisar and had met Sh. Kuldeep Singh, In-charge, Polyclinic, ECHS, Bhiwani, who resides in Hisar. While discussing the matter of referring the patients to his hospital and for clearing emergency intimation of patients, Sh. Kuldeep Singh demanded bribe of Rs. 5,000/- per patient in the presence of Sh. Inderjeet. Sh. Kuldeep Singh further told that if the bribe is not paid, he will get his (complainant's) hospital de-empanelled. During that conversation, Sh. Kuldeep Singh told Dr. Gaurav Bewal that he need not come to deliver the bribe amount himself and instead asked him to deliver the amount through his friend Inderjeet. He further informed that the bribe amount is to be paid/ delivered to him at Bhiwani, Railway Station to maintain secrecy from other staff of ECHS, Bhiwani.

It has been further alleged in the complaint that as the complainant did not want to pay bribe, he has been delaying his demand of bribe, but Sh. Kuldeep Singh has been pressurizing through WhatsApp call to pay the bribe amount of Rs. 1.55 lacs for

31 patients referred by ECHS polyclinic for last several days. Dr. Gaurav Bewal do not want to give bribe of Rs. 1.55 lacs to Sh. Kuldeep Singh, In-charge, Polyclinic, ECHS, Bhiwani therefore he has submitted complaint to take appropriate legal action against Sh. Kuldeep Singh for demanding bribe.

Result of Verification

I briefed the complainant and apprised him about the method of verification. Thereafter, a WhatsApp call was made from Mob. No. 74041-02074 of the complainant to Mob. No. 89509-50465 of Sh. Kuldeep Singh, but the said call was not attended. After waiting for sometime, another normal call was made from the mobile of the complainant to Sh. Kuldeep Singh and the same was also not attended. Thereafter, we waited for substantial time for revert call from Sh. Kuldeep Singh, but no call was received from his side. The complainant informed that he had to leave for some important meeting and hence it has been decided to conduct the verification tomorrow i.e. 25.11.2024. I also discussed the contents of the complaint with Sh. Inderjeet, friend of the complainant Dr. Gaurav Bewal who was also present at that time and he also corroborated the version of the complainant.

Accordingly on 25.11.2024, I again met Dr. Gaurav Bewal, Director of SMSG Hospital, Maharaja Agarsen Chowk, Bhiwani and while we are discussing the matter with him, at around 10.53 AM, a WhatsApp call was received on the mobile of the complainant, from the mobile phone number 89509-50465 of Sh. Kuldeep Singh. The said call was attended by the complainant by keeping his mobile on speaker mode. The said call was recorded on fresh 32 GB Sandisk make memory Card inserted in the Sony DVR. Thereafter, the said recording was saved on my official laptop through write blocker device. The memory card of 32 GB, used during the course of verification is in my safe custody and will be handed over to Trap Laying Officer during trap proceedings. I heard the recorded conversation between complainant Dr. Gaurav Bewal and suspect Sh. Kuldeep Singh, In-charge, Polyclinic, ECHS, Bhiwani, which corroborated the allegation of the complainant as mentioned in the complaint. From the recorded conversation, it is clearly established that suspect Kuldeep Singh is demanding bribe of Rs. 1.55 lacs (i.e. Rs. 5,000/- per patient for 31 patients) for referring the patients to his hospital and for clearing emergency intimation of patients.

Accordingly, I telephonically informed the Supervisory Officer about the out coming of the verification.

The relevant transcription of the conversation held between complainant and suspect Kuldeep Singh on 25.11.2024 has also been prepared with the help of complainant and the same is as under:

'C' denotes Complainant Dr. Gaurav Bewal & 'S' denotes Kuldeep Singh

- S- aa thik... koe ni bus 3 pone 3 baje bta dena usko..
- C- pone 3 baje sir...
- S- haan haan..
- C- Sir aaj to shyad na Rohtak jana hai.. 2 baje meeting hai..
- S- Acha...
- C- haan to ya pehle.. pehle to fir aap busy hoge sir ...
- S- haan pehle to office se nahi nikalna nahi (not clear)..
- C- mai arrange karta hu sir.. kitne pending hai sir..
- S- thirty one hai pichle mahine ke..
- C- 31 patients ke..
- S- haan haan..
- C- 31 patients ke.. thik hai sir mai koshish karta hu ki aaj arrange krdu...or thoda sir patients ka dhyan delo sir...
- S- thik h.. don't worry.. kar raha hu..
- C- haan sir.. patients ka dekhlo.. kyunki refer nahi aarehe bilkul bhi... to wo dekh lo Sir...
- S- (not clear)...
- C- mai ek packet.. ek packet krwata hu sir aaj..
- S- haan.. thirty one hai total uska pura pichhle mahina complete krke thik hai..
- C- thirty one patients ka sir.. one lac ...
- S- haan...
- C- one lac ke around karwata hu sir...

- S- picheka one fifty five banega.
- C- one fifty five banega Koshish karta hu sir mai aapko call karke aaj arrange krke karwa deta hu.....
- S- thik hai thik hai..

Further, while preparing the transcriptions, another WhatsApp call was received on the mobile of the complainant, from the mobile phone of Sh. Kuldeep Singh. The said call was attended by the complainant in my presence by keeping his mobile on speaker mode. During the said call, Sh. Kuldeep Singh informed the complainant that he was waiting for Inderjeet at the Railway Station on which the complainant informed him that he was away and will positively deliver the amount tomorrow. Due to paucity of time, the said call could not be recorded.

As it has emerged during the course of verification that the bribe has to be delivered by Sh. Inderjeet (Mob. No. 82339-95736) to Sh. Kuldeep Singh on behalf of the complainant, the complainant asked Sh. Inderjeet to remain present tomorrow i.e. on 26.11.2024 for further proceedings. I also directed the complainant to arrange bribe amount of Rs.1.55 lacs for further proceedings. The transcript of conversation held during verification and complaint dated 24.11.2024 also enclosed with the verification report.

Recommendation:

In the light of above mentioned facts and circumstances, it is recommended that a regular case may be registered u/s section 7 of Prevention of Corruption Act, 1988 (as amended in 2018) against Sh. Kuldeep Singh, In-charge, Polyclinic, ECHS, Bhiwani for demanding bribe of Rs. 1.55 lacs from the complainant Dr. Gaurav Bewal.

Submitted please.



(Arun Ahlawat)
Inspector of Police,
CBI, ACB, Chandigarh.

RC be registered.

Insp. Narender Kalwaniya to carry trap proceedings.

Pl. p/u draft RC.

Asl 4
25/11/2024

Transcription of conversation held between complainant Dr. Gaurav Bewal and suspect Sh. Kuldeep Singh during verification on 25.11.2024.

File Name- 241125_1053

Date:-25.11.2024

C- denotes for complainant Dr. Gaurav Bewal

S- denotes for suspect Sh. Kuldeep Singh

- C- Good morning Jai hind sir...
- S- Jai hind.. hai hind..good morning...
- C- Haan sir...
- S- Tum kal phone kar rehe the...kal to Sunday tha...
- C- Sir kal mai actually hisar gya hua tha.. matlab jaa raha tha jab maine apko call kiya tha.. ek dost ki shadi thi JU university hai na koe.. usmai.. community hall mai..
- S- ok ok ok..
- C- haan to... mujhe lga ki mai wahan aapko kar du fir.. to aapne call uthaya nahi sir...
- S- ..(not clear)..ok ok.. shadi thi kya..
- C- haan ek friend thi sir meri classmate...
- S- haan haan...
- C- to JJU facility hai usmai fir shadi mai gye hue the.. to jab aapka call aaya to jab music ki sound thi to fir maine uthaya nahi sir..
- S- tab... mai bhi bahar gya hua tha.. (not clear)
- C- Acha acha..
- S- aa thik... koe ni bus 3 pone 3 baje bta dena usko..
- C- pone 3 baje sir...
- S- haan haan..
- C- Sir aaj to shayad na Rohtak jana hai.. 2 baje meeting hai..



S- Acha...

C- haan to ya pehle.. pehle to fir aap busy hoge sir ...

S- haan pehle to office se nahi nikalna nahi (not clear)..

C- mai arrange karta hu sir.. kitne pending hai sir..

S- thirty one hai pichle mahine ke..

C- 31 patients ke..

S- haan haan..

C- 31 patients ke.. thik hai sir mai koshish karta hu ki aaj arrange krdu...or thoda sir patients ka dhyan delo sir...

S- thik h.. don't worry.. kar raha hu..

C- haan sir.. patients ka dekhlo.. kyunki refer nahi aarehe bilkul bhi... to wo dekh lo Sir...

S- (not clear)...

C- mai ek packet.. ek packet krwata hu sir aaj..

S- haan.. thirty one hai total uska pura pichhle mahina complete krke thik hai..

C- thirty one patients ka sir.. one lac ...

S- haan...

C- one lac ke around karwata hu sir...

S- ...picheka one fifty five banega..

C- one fifty five banega Koshish karta hu sir mai aapko call karke aaj arrange krke karwa deta hu.....

S- thik hai thik hai..

C- pone 3 baje miloge na Sir..

S- haan...haan..

C- thik hai.. thik hai Sir thankyou...



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